

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

RANI ZAIBAK,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TIMOTHY COMMANDER, Tax No. 960385, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 8, 2024

Yours, etc.

David M Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER TIMOTHY COMMANDER, Tax No. 960385, Patrol Borough Brooklyn
South Community Response Team

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

RANI ZAIBAK,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
TIMOTHY COMMANDER, Tax No. 960385, and
POLICE OFFICERS JOHN DOES #s 1-10 (names and
numbers of whom are unknown at present),

Defendants.

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Plaintiff RANI ZAIBAK, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on January 8, 2021, at approximately 2:00 pm plaintiff was lawfully present at Kings Plaza Mall, located at 5400 Avenue U, Brooklyn, New York, at which time he observed the individually named police officer defendants running toward him without probable cause or legal justification to believe he violated the law or committed a crime. Plaintiff's anxiety levels increased as the defendants got closer to him, and plaintiff began to walk in in the opposite direction from which the officers were coming from. Then the defendant police officers caught up to plaintiff and shot him two times in the back with a TASER gun, causing plaintiff to be electrocuted throughout his body. Plaintiff fell to the ground and felt like his back was on fire from being shot with the TASER. The individually named defendant police officers, approached plaintiff, placed a gun to plaintiff's head, unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe he committed a crime. Moreover, at no time relevant herein did plaintiff pose a threat to the officers or anyone else in his vicinity and the officers did not possess a legal basis to shoot plaintiff with the TASER. The officers falsely arrested plaintiff and subjected him to the use of excessive force. Instead of calling

for an ambulance for plaintiff, the defendants removed the TASER wires from plaintiff's back while he was laying on the floor handcuffed. The defendant officers did not tell plaintiff why they arrested him, and they transported him to the 63rd Precinct against his will. Plaintiff was unlawfully detained in a holding cell at the 63rd Precinct for many hours before the officers issued plaintiff a Criminal Summons that contained fabricated allegations against plaintiff and falsely alleged that plaintiff committed the offense of Disorderly Conduct. Plaintiff was released from custody at the 63rd Precinct after he received the Criminal Summons. Plaintiff retained a private criminal attorney to represent him criminal matter. Plaintiff appeared in Kings County Criminal Court on two occasions to address the false allegations made by the defendant police officers on a Summons. On April 28, 2021, all charges brought against plaintiff were dismissed and sealed and the criminal matter terminated in plaintiff's favor. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Additionally, the officers unlawfully damaged, searched and seized plaintiff's vehicle and drove it to the 63rd Precinct where it was held for approximately 2 weeks before it was returned to plaintiff. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff RANI ZAIBAK is a resident of the state of New York.

3. Defendant POLICE OFFICER TIMOTHY COMMANDER, Tax No. 960385, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

Defendant POLICE OFFICER TIMOTHY COMMANDER, Tax No. 960385, was at all times relevant herein, assigned to the 63rd Precinct and is presently assigned to the Patrol Borough Brooklyn South Community Response Team.

4. Defendant POLICE OFFICER TIMOTHY COMMANDER, Tax No. 960385, is being sued in his individual and official capacity.

5. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

6. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

11. On January 8, 2021, at approximately 2:00 pm plaintiff was lawfully present at Kings Plaza Mall, located at 5400 Avenue U, Brooklyn, New York, at which time he observed the individually named police officer defendants running toward him without probable cause or legal justification to believe he violated the law or committed a crime.

12. Plaintiff's anxiety levels increased as the defendants got closer to him, and plaintiff began to walk in in the opposite direction from where the officers were coming from.

13. Then the defendant police officers caught up to plaintiff and shot him two times in the back with a TASER gun, causing plaintiff to be electrocuted throughout his body.

14. Plaintiff fell to the ground and felt like his back was on fire from being shot with the TASER.

15. The individually named defendant police officers, approached plaintiff, placed a gun to plaintiff's head, unlawfully handcuffed and falsely arrested plaintiff, without probable cause or legal justification.

16. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

17. Moreover, at no time relevant herein did plaintiff pose a threat to the officers or anyone else in his vicinity and the officers did not possess a legal basis to shoot plaintiff with the TASER.

18. The defendants did not possess a legal or factual basis to subject plaintiff to the use of any force against him.

19. The officers falsely arrested plaintiff and subjected him to the use of excessive force.

20. Instead of calling for an ambulance for plaintiff to treat any injuries caused from being shot twice with a TASER, the defendants removed the TASER wires from plaintiff's back themselves, while plaintiff was laying on the ground handcuffed.

21. The defendant officers did not tell plaintiff why they arrested him, and they transported him to the 63rd Precinct against his will.

22. Plaintiff was unlawfully detained in a holding cell at the 63rd Precinct for many hours before the officers issued plaintiff a Criminal Summons that contained fabricated allegations against plaintiff and falsely alleged that plaintiff committed the offense of Disorderly Conduct.

23. Plaintiff was released from custody at the 63rd Precinct after he received the Criminal Summons.

24. Plaintiff retained a private criminal attorney to represent him in the underlying criminal matter.

25. Plaintiff appeared in Kings County Criminal Court on two occasions to address the false allegations made by the defendant police officers against him on the Summons.

26. On April 28, 2021, all charges brought against plaintiff were dismissed and sealed in their entirety and the criminal matter terminated in plaintiff's favor.

27. Additionally, the officers unlawfully damaged, searched and seized plaintiff's vehicle and drove it to the 63rd Precinct where it was held for approximately 2 weeks before it was returned to plaintiff.

28. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

29. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's

rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

30. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, falsely arrested, maliciously prosecuted and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

31. Defendants falsely arrested, maliciously prosecuted, and subjected plaintiff to the use of excessive force, without probable cause or legal justification.

32. At no time relevant herein did plaintiff commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

33. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, searched, questioned, frisked, falsely arrested, maliciously prosecuted, and subjected plaintiff to the use of excessive force in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

34. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

35. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

36. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

37. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since

the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

38. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

39. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

40. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and excessive force used by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

41. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully seized, searched and damaged plaintiff's vehicle, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

54. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

56. Defendants commenced and continued a criminal proceeding against plaintiff.

57. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

58. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

59. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The use of excessive force by defendants by shooting him with a TASER two times, pointing a gun to plaintiff's head, and forcefully pinning plaintiff to the ground was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

66. Defendants failed to intervene to prevent the unlawful conduct described herein.

67. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force without an objective factual legal basis to seize, arrest, prosecute, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

71. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

72. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

73. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

74. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

75. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

76. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

78. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of,

and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

79. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

80. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff RANI ZAIBAK demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 8, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

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ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 8, 2024

David M Hazan

DAVID M. HAZAN